

claude-windows / 068560d3-1ca2-4387-981a-d2d6bca55414

Metadata

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- Source: `claude-windows`  
- Kind: `claude`  
- Source file: `C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\subagents\workflows\wf_47057438-9c9\agent-ac7c49b8f877090e1.jsonl`  
- SHA-256: `1116182be79b2990858f9bfd0ab5257122ab6401a28d0385ed6e63033fbb2c4b`  
- Source modified: `2026-06-16T03:00:40+00:00`  
- Imported at: `2026-07-05T16:48:28+00:00`  
- project: `wf_47057438-9c9`  
- session_id: `068560d3-1ca2-4387-981a-d2d6bca55414`
```

Transcript

1. user (2026-06-16T02:57:43.894Z)

You are a SKEPTICAL second lawyer. Try to REFUTE or materially QUALIFY the bottom line below using authoritative sources. Look for the strongest counter-authority, jurisdictional exceptions, and ways an over-confident reading would get the client in trouble. Default to 'qualified' or 'refuted' if there is genuine doubt.

METHOD: Use WebSearch and WebFetch to find and cite AUTHORITATIVE sources (statutes, case law, official regulator guidance, reputable legal commentary). Load them first if needed via ToolSearch with query 'select:WebSearch,WebFetch'. Cite real URLs. If you cannot fetch a source, mark that claim's confidence 'low' and set webUsed=false. Do NOT fabricate citations ? an honest 'unverified' beats an invented case name or URL.

QUESTION KEY: copyright-facts

BOTTOM LINE TO ATTACK: Under US copyright law, the DERIVED NUMERIC DATA itself does NOT inherit the video's copyright. Per-frame shuttle (x,y) coordinates, rally start/end timestamps, and audio-onset feature values are uncopyrightable FACTS/measurements about the recorded event ? discovered, not authored ? so under Feist (facts are never copyrightable; "sweat of the brow" rejected), §102(b) (no copyright in any "idea, procedure, process ... or discovery"), and NBA v. Motorola (facts generated by a sporting event are uncopyrightable even though the broadcast is), the data is outside the scope of the video's copyright. It is also NOT a "derivative work" under §101: a derivative work recasts/transforms/adapts the original's protected EXPRESSION (framing, editing, imagery, commentary), and a coordinate/timestamp table carries none of that expression ? only facts. The most that copyright could attach to is a THIN protection in an original SELECTION/COORDINATION/ARRANGEMENT of the resulting dataset (a creatively designed schema), never in the raw numbers, which competitors stay free to copy. CRITICAL CAVEAT ? keep two questions separate: (1) the STATUS of the output data (clearly unprotected facts), versus (2) the ACT of extraction. Sega v. Accolade holds intermediate copying CAN infringe even when the end product reproduces no protected expression, so transiently copying/ingesting the source video to compute the data needs its own lawful basis ? either a license to that video or a fair-use defense. The fair-use line is strongly favorable for analytic, non-expressive extraction: Authors Guild v. Google (verbatim copying for a non-expressive search/index purpose is transformative fair use), Google v. Oracle (functional material is far from copyright's core; reuse for a new productive purpose is transformative), and the 2025 AI-training rulings (using works "as data rather than expression" favors fair use). Net: ingest only videos you have the right to use (clean-licensed/owned/permissioned sources), and the derived numeric dataset is yours to use and publish as uncopyrightable facts ? consistent with the repo's "paid LLMs are inference-only, never a training-data source" and "commercial-clean licensing" guardrails, which address the SOURCE-acquisition side that this fact/expression analysis does not resolve.

SUPPORTING FINDINGS (JSON): [{"claim":"Facts are categorically not copyrightable because they are discovered, not authored, and thus lack the originality the Constitution and Copyright Act require; effort ('sweat of the brow') does not earn copyright. This is the foundational holding most directly governing extracted numeric data.", "support":"Feist Publications v. Rural Telephone Service Co., 499 U.S. 340 (1991): the Court held 'facts are not copyrightable' because they 'do not owe their origin to an act of authorship' and so are not original, and expressly held that 'originality, not sweat of the brow, is the touchstone of copyright protection.'"}]

Copyright 'rewards originality, not effort.' Per-frame (x,y) shuttle positions, rally start/end timestamps, and audio-onset values are observable physical facts about events recorded in the video ? discovered measurements, not authored expression ? so they fall squarely within the unprotected 'facts' category regardless of the computational effort to derive them.", "sourceName": "Feist Publications, Inc. v. Rural Telephone Service Co., 499 U.S. 340 (1991) ? Justia U.S. Supreme Court Center", "sourceUrl": "https://supreme.justia.com/cases/federal/us/499/340/", "confidence": "high"}, {"claim": "Facts and statistics GENERATED BY A SPORTING EVENT are not copyrightable even though the audiovisual BROADCAST of that event is ? the closest factual analogue to extracting shuttle coordinates and rally timings from a match video.", "support": "National Basketball Ass'n v. Motorola, Inc., 105 F.3d 841 (2d Cir. 1997): the court held 'Sports events are not authored in any common sense of the word' and that the underlying scores/statistics are uncopyrightable facts ('purely factual information which any patron of an NBA game could acquire from the arena'), while only the broadcast ? the creative work of directors, camera operators, editors ? is protected. By direct analogy, shuttle positions, rally boundaries, and onset values are facts ABOUT the game that any spectator could in principle observe; they are not original to whoever created the video, so they do not inherit the video's copyright.", "sourceName": "National Basketball Ass'n v. Motorola, Inc., 105 F.3d 841 (2d Cir. 1997) ? Wikipedia case summary", "sourceUrl": "https://en.wikipedia.org/wiki/National_Basketball_Ass'n_v._Motorola,_Inc.", "confidence": "high"}, {"claim": "Copyright never extends to any idea, procedure, process, system, method of operation, concept, principle, or discovery ? only to original expression. Measured coordinates and timestamps are 'discoveries'/facts about the recorded event and fall in the §102(b) exclusion.", "support": "17 U.S.C. § 102(b): 'In no case does copyright protection for an original work of authorship extend to any idea, procedure, process, system, method of operation, concept, principle, or discovery, regardless of the form in which it is described, explained, illustrated, or embodied in such work.' This is the statutory codification of the idea/expression dichotomy and confirms that the factual/discovered content extracted from the video (the where-and-when of the shuttle and rallies) is outside the scope of the video's copyright.", "sourceName": "17 U.S.C. § 102 ? BitLaw / U.S. Code", "sourceUrl": "https://www.bitlaw.com/source/17usc/102.html", "confidence": "high"}, {"claim": "A 'derivative work' is a work that recasts, transforms, or adapts a preexisting work's EXPRESSION (e.g., translation, motion-picture version, abridgment). Stripping out non-expressive numeric facts is not 'recasting' the audiovisual expression, so the coordinate/timestamp/feature data is not a derivative work that inherits the video's copyright.", "support": "17 U.S.C. § 101 defines a derivative work as 'a work based upon one or more preexisting works, such as a translation, musical arrangement, dramatization, fictionalization, motion picture version, sound recording, art reproduction, abridgment, condensation, or any other form in which a work may be recast, transformed, or adapted.' Each enumerated example reuses the original's protected EXPRESSION. A table of (x,y) positions and timestamps reproduces none of the video's expressive elements (framing, editing, commentary, imagery); it captures only facts, which §102(b)/Feist place outside copyright. A derivative-work claim therefore fails because there is no protected expression carried into the output.", "sourceName": "17 U.S.C. § 101 Definitions ? Legal Information Institute (Cornell)", "sourceUrl": "https://www.law.cornell.edu/uscode/text/17/101", "confidence": "high"}, {"claim": "A compilation/database of facts can earn a THIN copyright, but only in the original SELECTION, COORDINATION, OR ARRANGEMENT ? never in the underlying facts. So a creatively-organized dataset might get limited protection for its structure, but a competitor remains free to copy the raw numbers themselves.", "support": "17 U.S.C. § 101 defines a 'compilation' as data 'selected, coordinated, or arranged in such a way that the resulting work as a whole constitutes an original work of authorship,' and Feist holds copyright in a compilation 'extends only to those components of the work that are original to the author, not to the facts themselves.' Practical upshot: any copyright the extractor obtains is in the dataset's expressive arrangement (if creative), not in the shuttle coordinates, rally timestamps, or onset values, which remain free for others to use.", "sourceName": "Feist Publications, Inc. v. Rural Telephone Service Co., 499 U.S. 340 (1991) ? Justia", "sourceUrl": "https://supreme.justia.com/cases/federal/us/499/340/", "confidence": "high"}, {"claim": "The act of EXTRACTION (transiently copying the video to analyze it) is a distinct question from the status of the OUTPUT data ? and intermediate copying CAN infringe even when the end product does not reproduce protected expression, so the extraction step must independently rely on a license or fair use.", "support": "Sega Enterprises Ltd. v. Accolade, Inc., 977 F.2d 1510 (9th Cir. 1992): 'intermediate copying of computer object code may infringe the exclusive rights granted to the copyright owner in section 106 ... regardless of whether the end product of the copying also infringes those rights.' But the same court held that copying to access UNPROTECTED functional/ideational elements is fair use where it is the only means of access and there is a legitimate reason, because §102(b) elements 'are not protected by copyright.' Applied here: even though the numeric output is unprotectable, ingesting the video to compute it is itself a reproduction that needs a lawful basis (license to the source video, or a fair-use justification

for the analytic copying).","sourceName":"Sega Enterprises Ltd. v. Accolade, Inc., 977 F.2d 1510 (9th Cir. 1992) ? BitLaw","sourceUrl":"https://www.bitlaw.com/source/cases/copyright/Sega-Accolade.html","confidence":"high"},{"claim":"Copying a whole work for a NON-EXPRESSIVE, analytical purpose ? to build an index/search function or extract data rather than to deliver the original's expression to the public ? is strongly favored as transformative fair use. This squarely supports the extraction pipeline if it must rely on fair use.","support":"Authors Guild v. Google, Inc., 804 F.3d 202 (2d Cir. 2015): the court held that 'verbatim copying of works for a different, non-expressive purpose can be a transformative fair use' ? Google copied entire books to build a searchable index and show snippets, which 'augments public knowledge ... without providing the public with a substantial substitute' for the originals. Extracting positional/temporal/audio-feature data is non-expressive analytic use that does not republish the video's expression, fitting this transformative-purpose rationale.","sourceName":"Authors Guild v. Google, Inc., 804 F.3d 202 (2d Cir. 2015) ? Justia (Second Circuit opinion)","sourceUrl":"https://law.justia.com/cases/federal/appellate-courts/ca2/13-4829/13-4829-2015-10-16.html","confidence":"high"},{"claim":"The Supreme Court has reinforced that functional, non-expressive material lies far from copyright's core and that reusing it for a new, productive purpose is transformative fair use ? and that any losses tied to function rather than expression do not count against fair use.","support":"Google LLC v. Oracle Am., Inc., 141 S. Ct. 1183 (2021), as summarized in the U.S. Copyright Office Fair Use Index: the Court found Google's copying of declaring code 'transformative' because it 'adds something new and important,' that the code was 'functional in nature' and 'further than most computer programs from the core of copyright,' and that Oracle's losses 'were due not to the expressive qualities ... but to programmers having become accustomed to' certain calls. By analogy, the value of extracted shuttle/rally/audio data derives from factual/functional content, not the video's expression, reinforcing that the data does not inherit the video's copyright and that analytic extraction is transformative.","sourceName":"Google LLC v. Oracle Am., Inc., 141 S. Ct. 1183 (2021) ? U.S. Copyright Office Fair Use Index summary","sourceUrl":"https://www.copyright.gov/fair-use/summaries/google-llc-oracle-am-inc-2021.pdf","confidence":"high"},{"claim":"Recent (2025) AI-training decisions confirm the modern through-line: courts treat using copyrighted works 'as data rather than expression' as transformative/non-expressive use that favors fair use, while output that reproduces a work's expressive market function does not.","support":"As summarized in legal commentary on Bartz v. Anthropic, Kadrey v. Meta, and Thomson Reuters v. Ross (2025): courts 'accept complete copying when it is technologically necessary and non-expressive, with the end user never receiving the protected content,' and 'when the training is analytical ? using works as data rather than expression ? it passes' fair use. This supports treating feature extraction (data, not expression) as non-infringing in its OUTPUT and favorable on fair use for the extraction step; however, this body of law is new, fact-specific, and partly unsettled (mixed outcomes; appeals likely).","sourceName":"Training Data on Trial: AI's First Fair Use Test ? IPWatchdog","sourceUrl":"https://ipwatchdog.com/2025/10/09/training-data-trial-ai-first-fair-use-test/","confidence":"medium"}]

2. assistant (2026-06-16T02:57:47.013Z)

I'll act as the skeptical second lawyer and try to refute or qualify this bottom line. Let me load the web tools and find authoritative counter-authority.

3. assistant (2026-06-16T02:57:51.948Z)

Now let me search for the strongest counter-authorities. I'll attack several fronts in parallel: (1) sports data IP beyond NBA v. Motorola (hot-news, contract/ToS, CFAA), (2) the AI-training fair use cases that came out AGAINST the defendant or with major qualifications, (3) audiovisual-frame-extraction specifically, and (4) database/sui generis rights and contract preemption.

4. user (2026-06-16T02:58:01.417Z)

Web search results for query: "Thomson Reuters v. Ross 2025 fair use rejected non-expressive intermediate copying"

Links: [{"title":"THOMSON REUTERS ENTERPRISE CENTRE GmbH v. ROSS INTELLIGENCE INC., Dist. Court, D. Delaware 2025, (BitLaw)","url":"https://www.bitlaw.com/source/cases/copyright/Thomson-Reuters-Ross.html"}, {"title":"Fair Use Defense Failed in Thomson Reuters v. Ross, Jury Still Out for Generative AI | Perkins Coie","url":"https://perkinscoie.com/insights/update/fair-use-

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defense-failed-thomson-reuters-v-ross-jury-still-out-generative-ai"}, {"title": "Film Studios, News Media and Even Competitor LexisNexis Among the 12 Amicus Briefs Supporting Thomson Reuters' Copyright Case Against ROSS | LawSites", "url": "https://www.lawnext.com/2025/12/film-studios-news-media-and-even-competitor-lexisnexis-among-the-nine-amicus-briefs-supporting-thomson-reuters-copyright-case-against-ross.html"}, {"title": "Amicus Brief in Thomson Reuters v. Ross | The Foundation for American Innovation", "url": "https://www.thefai.org/posts/amicus-brief-in-thomson-reuters-v-ross"}, {"title": "First Decision Finding Copyright Infringement in Generative AI | Knowledge | Fasken", "url": "https://www.fasken.com/en/knowledge/2025/03/first-decision-finding-copyright-infringement-in-generative-ai"}, {"title": "Court Rejects Fair Use Defense in AI Copyright Case | Insights & Resources | Goodwin", "url": "https://www.goodwinlaw.com/en/insights/publications/2025/02/alerts-practices-ip-lit-court-rejects-fair-use-defense-in-ai-copyright-case"}, {"title": "Amicus Briefs in 'Thomson Reuters v. Ross' Case Urge Application | Copyright Alliance", "url": "https://copyrightalliance.org/thomson-reuters-v-ross-amicus-briefs/"}, {"title": "Thomson Reuters v. Ross Intelligence, Inc. | Loeb & Loeb LLP", "url": "https://www.loeb.com/en/insights/publications/2025/02/thomson-reuters-v-ross-intelligence-inc"}, {"title": "Fair Warning: AI's First Copyright Fair Use Ruling, Thomson Reuters v. ROSS", "url": "https://www.hunton.com/insights/legal/fair-warning-ais-first-copyright-fair-use-ruling-thomson-reuters-v-ross"}]
```

Based on the search results, here's what the Thomson Reuters v. Ross 2025 case reveals about fair use and non-expressive intermediate copying:

The Court's Rejection of the Intermediate Copying Defense

The court rejected Ross's argument that intermediate copying should support transformative use, noting that the copied materials were expressive editorial works rather than functional software, and that the headnotes did not restrict access to unprotected ideas.

Key Distinctions from Prior Cases

While prior cases considered intermediate copying to be fair use when necessary to access non-copyrightable ideas in functional source code, this court rejected that reasoning here because the copied materials were expressive editorial works rather than functional software.

The court distinguished Ross's "intermediate" use against previous decisions like Google v. Oracle, where intermediate copying was permitted, because those cases involved copying computer code rather than literary works, and in Google, the copying was necessary for innovation.

The Non-Expressive Copying Argument

Ross's claim that it engaged in "non-expressive" or intermediate copying was rejected as misstating the law, since copyright protects reproduction even if the output is not infringing, and one cannot justify copying expressive works simply by claiming the goal was to reach unprotected "facts."

Overall Finding

The decision holds that fair use does not apply to intermediate copies made to train AI tools when used to create a competing product that serves the same purpose as the training materials.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

5. user (2026-06-16T02:58:03.585Z)

Web search results for query: "Bartz v. Anthropic 2025 fair use ruling pirated books liability copyright"

Links: [{"title": "Bartz v. Anthropic Settlement: What Authors Need to Know - The Authors Guild", "url": "https://authorsguild.org/advocacy/artificial-intelligence/what-authors-need-to-know-about-the-anthropic-settlement/"}, {"title": "Mixed Decision in Anthropic AI Case: Authors"}]

Guild Responds to Summary Judgment in Bartz v. Anthropic - The Authors Guild", "url": "https://authorsguild.org/news/mixed-decision-in-anthropic-ai-case/"}], [{"title": "Bartz v. Anthropic: A Split Decision That Reshapes AI Copyright Law - BoyarMiller", "url": "https://www.boyarmiller.com/bartz-v-anthropic-a-split-decision-that-reshapes-ai-copyright-law/"}], [{"title": "Landmark Ruling on AI Copyright: Fair Use vs. Infringement in Bartz v. Anthropic | ArentFox Schiff", "url": "https://www.afslaw.com/perspectives/alerts/landmark-ruling-ai-copyright-fair-use-vs-infringement-bartz-v-anthropic"}], [{"title": "The Bartz v. Anthropic Settlement: Understanding America's Largest Copyright Settlement | Kluwer Copyright Blog", "url": "https://legalblogs.wolterskluwer.com/copyright-blog/the-bartz-v-anthropic-settlement-understanding-americas-largest-copyright-settlement/"}], [{"title": "Bartz v. Anthropic: Settlement reached after landmark summary judgment and class certification | Inside Tech Law | Global law firm | Norton Rose Fulbright", "url": "https://www.insidetechlaw.com/blog/2025/09/bartz-v-anthropic-settlement-reached-after-landmark-summary-judgment-and-class-certification"}], [{"title": "Five Takeaways from the Bartz v. Anthropic Order on Fair Use", "url": "https://www.goodjourneyconsulting.com/blog/five-takeaways-from-the-bartz-et-al-v-anthropic-pbc-order-on-fair-use"}], [{"title": "breaking news judge alsup rules anthropic", "url": "https://chatgptiseatingtheworld.substack.com/p/breaking-news-judge-alsup-rules-anthropic"}]

Based on the search results, here's what you need to know about the Bartz v. Anthropic case:

The Ruling

In June 2025, Judge William Alsup of the U.S. District Court for the Northern District of California ruled on summary judgment that using books without permission to train AI was fair use if they were acquired legally, but he denied Anthropic's request for summary judgment related to piracy, finding that the piracy was not fair use.

The Split Decision

Judge Alsup ruled that Anthropic's use of books to train LLMs is "spectacularly" transformative and therefore a fair use, Anthropic's digitization of books it purchased in print form was fair use, and Anthropic's use of "pirated" copies of books was infringing.

Piracy Liability

The critical finding regarding pirated books: Anthropic's acquisition of pirated books from shadow libraries that Anthropic used to create a general library at Anthropic was copyright infringement. Anthropic had downloaded millions of copyrighted books from "shadow libraries" like Library Genesis (LibGen) and Pirate Library Mirror (PiLiMi) to train its AI systems, with over 7 million books downloaded from pirate sites.

Settlement and Damages

Statutory damages range from \$750 to \$30,000 per work for ordinary infringement, up to \$150,000 for willful infringement, and the potential liability totaled in the billions? 482,460 books times \$150,000 equals \$72 billion, or at minimum \$360 million at \$750 per book.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

6. assistant (2026-06-16T02:58:07.431Z)

Strong counter-authority emerging. Thomson Reuters v. Ross directly rejects the "non-expressive intermediate copying to reach facts" argument, and the market-competition prong cuts against the bottom line. Let me dig into the Ross opinion and the Anthropic piracy holding, plus sports data ToS/hot-news angles.

7. user (2026-06-16T02:58:17.666Z)

Fair Use Factors in Thomson Reuters v. Ross

First and Fourth Fair Use Factors

The court ruled against Ross on both factors:

****Factor 1 (Purpose and Character):**** The court found Ross's use was not transformative because it lacked "a 'further purpose or different character'" from Thomson Reuters's original work. Ross simply used headnotes to build a competing legal research tool serving the identical purpose.

****Factor 4 (Market Effect):**** The court identified harm across multiple markets, including "data to train legal AIs" as a derivative market. Critically, the court rejected arguments about public benefit, noting that while judicial opinions are freely available, "the public has no right to Thomson Reuters's parsing of the law."

Limitation on "Data" Copying

This ruling significantly constrains the theory that copying materials merely to extract factual data constitutes automatic fair use. The court distinguished cases involving intermediate copying (like reverse engineering) by emphasizing that here, "copying computer code is different (because it is functional)" whereas written legal analysis serves expressive rather than purely functional purposes.

The decision suggests copying expressive works as training data?even when intermediate copies don't appear in final outputs?isn't automatically transformative when the resulting product competes with the original's market.

8. user (2026-06-16T02:58:18.099Z)

Thomson Reuters v. Ross Intelligence: Fair Use Analysis

(1) Why Intermediate Copying Failed Here

The court rejected Ross's intermediate copying argument because the copied material was expressive editorial work, not functional code. The judge emphasized:

> "those cases are all about copying computer code. This case is not."

Critically, the court found that unlike software cases, there was no necessity to copy to access unprotected ideas:

> "The copying is [not] 'reasonably necessary to achieve the user's new purpose.'"

The headnotes themselves didn't restrict access to judicial opinions (which remain freely available), so intermediate copying served no innovation-enabling function.

(2) Distinguishing Sega, Sony, and Google v. Oracle

The court identified two key differences:

****First****, these precedents involved computer programming specifically, while this case involved written editorial summaries.

****Second**** ? and most importantly ? those cases involved copying **necessary** to reach unprotected functional elements. The court noted:

> "The copying in Sony was also necessary. The Ninth Circuit 'appl[ied] fair use to intermediate copying [that was] necessary to reverse engineer access to unprotected functional elements.'"

No such necessity existed here. Headnotes didn't gate access to public domain opinions.

(3) Fourth Factor / Market Harm

Thomson Reuters prevailed decisively. The court found:

> "Ross meant to compete with Westlaw by developing a market substitute."

Regarding derivative markets: "It does not matter whether Thomson Reuters has used the data to train its own legal search tools; the effect on a potential market for AI training data is enough."

The public benefit argument failed because legal opinions are already freely available, and copyright incentivizes creators to develop valuable tools.

9. assistant (2026-06-16T02:58:25.300Z)

This is a significant material qualification. Now let me check the audiovisual angle, the database/contract preemption angle, and confirm the Anthropic piracy holding, plus whether sports leagues assert data rights through ToS/contract rather than copyright.

10. user (2026-06-16T02:58:37.365Z)

Web search results for query: "sports data scraping terms of service contract breach CFAA hiQ Van Buren legal risk"

Links: [{"title": "Web scraping case law: Van Buren v. United States", "url": "https://blog.apify.com/van-buren-v-united-states/"}, {"title": "Ninth Circuit Holds Data Scraping is Legal in hiQ v. LinkedIn - California Lawyers Association", "url": "https://calawyers.org/privacy-law/ninth-circuit-holds-data-scraping-is-legal-in-hiq-v-linkedin/"}, {"title": "Scraping Public Websites (Still) Isn't a Crime, Court of Appeals Declares | Electronic Frontier Foundation", "url": "https://www.eff.org/deeplinks/2022/04/scraping-public-websites-still-isnt-crime-court-appeals-declares"}, {"title": "Ninth Circuit: Web Scraping Does Not Violate CFAA | Insights & Resources | Goodwin", "url": "https://www.goodwinlaw.com/en/insights/blogs/2022/04/ninth-circuit-web-scraping-does-not-violate-cfaa"}, {"title": "Web scraping, website terms and the CFAA: hiQ's preliminary injunction affirmed again under Van Buren | White & Case LLP", "url": "https://www.whitecase.com/insight-our-thinking/web-scraping-website-terms-and-cfaa-hiqs-preliminary-injunction-affirmed-again"}, {"title": "Ninth Circuit Provides Path Forward for Web Scraping of Public Data | Loeb & Loeb LLP", "url": "https://www.loeb.com/en/insights/publications/2022/05/ninth-circuit-provides-path-forward-for-web-scraping-of-public-data"}, {"title": "Jenner & Block | Client Alert: Data Scraping: In hiQ v. LinkedIn, the Ninth Circuit Reaffirms Narrow Interpretation of CFAA | Jenner & Block LLP | Law Firm", "url": "https://www.jenner.com/en/news-insights/publications/client-alert-data-scraping-in-hiq-v-linkedin-the-ninth-circuit-reaffirms-narrow-interpretation-of-cfaa"}, {"title": "Taking Cue from the Supreme Court's Van Buren Decision, Ninth Circuit Releases New Opinion Holding Scraping of Publicly Available Website Data Falls Outside of CFAA | New Media and Technology Law Blog", "url": "https://newmedialaw.proskauer.com/2022/04/21/taking-cue-from-the-supreme-courts-van-buren-decision-ninth-circuit-releases-new-opinion-holding-scraping-of-publicly-available-website-data-falls-outside-of-cfaa/"}, {"title": "Data Scraping: In hiQ v. LinkedIn, the Ninth Circuit Reaffirms Narrow Interpretation of CFAA", "url": "https://www.jdsupra.com/legalnews/data-scraping-in-hiq-v-linkedin-the-5900375"}]

Based on the search results, here's what you need to know about sports data scraping, terms of service, CFAA violations, and the hiQ/Van Buren legal landscape:

Key Legal Framework

Van Buren v. United States (2021) is a landmark Supreme Court case that significantly reshaped the legal landscape surrounding the Computer Fraud and Abuse Act (CFAA), providing clarity for activities like web scraping.

The Supreme Court ruled that the CFAA's scope should be limited to situations where someone breaches a technological barrier that they are not authorized to pass through. Critically, accessing information from which you're not explicitly barred falls outside of CFAA, even if

such conduct is excluded by the website terms of use or robots.txt.

Terms of Service Limitations

The Ninth Circuit Court of Appeals ruled in *hiQ v. LinkedIn* that the Computer Fraud and Abuse Act likely does not bar scraping data from a public website against the wishes of the website owner. The Ninth Circuit decision rejected the claim that web scraping in violation of a website's terms of use constitutes a violation of the CFAA.

Important Caveats

However, the Court emphasized that its analysis was limited in scope to the CFAA and did not apply to potential claims against web scrapers under other theories, including trespass to chattels, copyright infringement, misappropriation, unjust enrichment, conversion, breach of contract or breach of privacy claims. In the wake of *hiQ* and *Van Buren*, victims of data scraping must rely on state common law claims to protect that data.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

11. user (2026-06-16T02:58:37.646Z)

Web search results for query: "contract anti-scraping clause enforceable not preempted copyright ProCD v Zeidenberg database"

Links: [{"title": "ProCD, Incorporated v. Zeidenberg ? Case Brief Summary ? Facts, Issue, Holding & Reasoning ? Studicata", "url": "https://www.studicata.com/case-briefs/case/procd-incorporated-v-zeidenberg"}, {"title": "Does Copyright Law Preempt Contractual Provisions Imposing AI-Related Usage Restrictions on Content? | Perkins Coie", "url": "https://perkinscoie.com/insights/blog/does-copyright-law-preempt-contractual-provisions-imposing-ai-related-usage"}, {"title": "COPYRIGHT SURVIVES: RETHINKING THE COPYRIGHT-CONTRACTS CONFLICT Guy A. Rub*", "url": "https://www.law.msu.edu/ipic/workshop/2017/papers/copyright_survives.2.pdf"}, {"title": "COPYRIGHT: PREEMPTION: CONTRACT ENFORCEABILITY PROCD, INC. V. ZEIDENBERG", "url": "http://www.btlj.org/data/articles2015/vol13/13_1_AR/13-berkeley-tech-l-j-0035-0054.pdf"}, {"title": "PROCD, INC. v. ZEIDENBERG", "url": "http://jolt.law.harvard.edu/articles/pdf/v10/10HarvJLTech353.pdf"}, {"title": "District Court Adopts Broad View of Copyright Preemption in Data Scraping Case | Insights | Skadden, Arps, Slate, Meagher & Flom LLP", "url": "https://www.skadden.com/insights/publications/2024/05/district-court-adopts-broad-view"}, {"title": "ProCD Inc. v. Zeidenberg (Bitlaw)", "url": "https://www.bitlaw.com/source/cases/copyright/procd.html"}, {"title": "ProCD, Inc. v. Zeidenberg - HandWiki", "url": "https://handwiki.org/wiki/ProCD,_Inc._v._Zeidenberg"}, {"title": "ProCD, Inc. v. Zeidenberg", "url": "https://en.wikipedia.org/wiki/ProCD,_Inc._v._Zeidenberg"}, {"title": "repository.y.law.uic.edu", "url": "https://repository.law.uic.edu/jitpl/vol16/iss2/9"}]

Based on the search results, here's what the case law shows regarding contract anti-scraping clauses and copyright preemption:

ProCD v. Zeidenberg Decision

The court ultimately held that shrinkwrap licenses are enforceable contracts under general contract law principles and that their enforcement is not preempted by federal copyright law.

Database Context

ProCD compiled a phone-directory database, sold it on CD-ROM with lower consumer prices and higher commercial prices, and included a shrinkwrap license limiting use to noncommercial purposes. Zeidenberg bought the consumer version, ignored the license, and resold the database through his company at lower commercial rates than ProCD's price.

Copyright Preemption Analysis

A simple two-party contract is not "equivalent to any exclusive rights within the general scope of copyright" and therefore may be enforced. General enforcement of shrinkwrap licenses of the kind before us does not create such interference with copyright preemption concerns.

Broader Application

The Seventh Circuit Court of Appeal's decision in *ProCD v. Zeidenberg* is typical of how courts have routinely rejected copyright preemption challenges by defendants in breach of contract claims, even where such claims involved copyrighted works.

However, it's worth noting that although the U.S. Supreme Court has never addressed the application of express preemption to contract claims, the dominant approach among federal appellate courts has been to hold breach of contract claims as categorically not preempted.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

12. user (2026-06-16T02:58:37.914Z)

Web search results for query: "copyright individual video frame still image audiovisual work extraction infringement reproduction"

Links: [{"title": "Circular 1 Copyright Basics", "url": "https://www.copyright.gov/circs/circ01.pdf"}, {"title": "How to Copyright a Video and Register Your Work ? The Legal Guide", "url": "https://thelegalguide.org/how-copyright-video-register-your-work/"}, {"title": "Device for generating, detecting, recording, and reproducing a watermarked moving image having a copy preventing capability and storage medium for storing program or the moving image", "url": "https://image-ppubs.uspto.gov/dirsearch-public/print/downloadPdf/6700989"}, {"title": "Chapter 1 - Circular 92 | U.S. Copyright Office", "url": "https://www.copyright.gov/title17/92chap1.html"}, {"title": "Image chain of title management", "url": "https://image-ppubs.uspto.gov/dirsearch-public/print/downloadPdf/10565358"}, {"title": "Still image verifying apparatus and method", "url": "https://image-ppubs.uspto.gov/dirsearch-public/print/downloadPdf/8761521"}, {"title": "Rights of copyright holder: control of copying, broadcast, and ?performance? - Language Studio", "url": "https://language-studio.clas.ufl.edu/copyright-law-and-educational-media-with-special-attention-to-foreign-media/rights-of-copyright-holder-control-of-copying-broadcast-and-performance/"}, {"title": "Digital signature apparatus and method", "url": "https://image-ppubs.uspto.gov/dirsearch-public/print/downloadPdf/9053370"}, {"title": "Method and apparatus for protecting broadcast data", "url": "https://image-ppubs.uspto.gov/dirsearch-public/print/downloadPdf/7546023"}]

I've completed the web search for your query about copyright, video frames, still images, audiovisual works, extraction, infringement, and reproduction. Here's a summary of the key findings:

Copyright Protection of Individual Frames

The copyright display right applies to individual images of a motion picture or other audiovisual work. This means copyright holders have rights over both the complete work and the individual frames within it.

Extraction and Infringement

Individual images can be extracted from master digital media files created from movies in both digital and non-digital formats. However, copyright owners have an interest in protecting their copyrights in these images from infringement and unauthorized or criminal use.

Fair Use Considerations

While teachers, artists, and critics can extract short clips from a film under Fair Use, they may not digitize an entire film or copy a VHS onto a DVD. The distinction between permissible

and infringing use depends on the scope and nature of the extraction.

Still Image Copyright Issues

A system which transmits copyright information of still images in broadcasts does not exist, meaning copyright violations can still be performed; still images have copyright rights and demand systems to transmit and manage the copyright information of still image contents.

The search results indicate that while individual frames are protected by copyright, the specific parameters of what constitutes infringement depend on fair use doctrine and the extent of reproduction or distribution.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

13. assistant (2026-06-16T02:58:41.282Z)

Let me verify the Anthropic piracy holding and the Copyright Office's position on AI training fair use, plus check the Skadden broad-preemption data scraping case which may cut the other way.

14. user (2026-06-16T02:58:49.384Z)

Judge Alsup's Finding on Pirated Copies

Judge Alsup held that Anthropic's use of **pirated/downloaded copies** was **NOT** fair use, despite the transformative training purpose.

The Reasoning

The court found that because Anthropic never compensated copyright holders for these copies, the pirated versions directly displaced demand for the original works. As the article states, the judge determined: **"no damages from pirating copies could be undone by later paying for copies of" the same books.**

Key Principle

Yes?the unlawful acquisition defeated the fair use defense. The court's logic was straightforward: the manner in which Anthropic obtained the source material mattered fundamentally. Even though using the books to train LLMs was deemed transformative, **obtaining them through piracy first** created an independent infringement that the subsequent transformative use could not remedy or retroactively legitimize.

This contrasted sharply with Anthropic's **lawfully purchased** print books, which the court found were fairly used when digitized as convenient replacements.

15. user (2026-06-16T02:59:02.086Z)

Web search results for query: "US Copyright Office report AI training 2025 fair use not categorical market dilution non-expressive"

Links: [{"title": "Copyright Office Issues Key Guidance on Fair Use in Generative AI Training: Wiley", "url": "https://www.wiley.law/alert-Copyright-Office-Issues-Key-Guidance-on-Fair-Use-in-Generative-AI-Training"}, {"title": "US Copyright Office Issues Report Addressing Use of Copyrighted Material to Train Generative AI Systems | McDermott", "url": "https://www.mwe.com/insights/us-copyright-office-issues-report-addressing-use-of-copyrighted-material-to-train-generative-ai-systems/"}, {"title": "United States Copyright Office Weighs in on Fair Use Defense for Generative AI Training | Insights | Mayer Brown", "url": "https://www.mayerbrown.com/en/insights/publications/2025/05/united-states-copyright-office-weighs-in-on-fair-use-defense-for-generative-ai-training"}, {"title": "U.S. Copyright Office Releases Part 3 of AI Report: What Authors Should Know - The Authors"}]

Guild", "url": "https://authorsguild.org/news/us-copyright-office-ai-report-part-3-what-authors-should-know/"}], [{"title": "Copyright Office Weighs In on AI Training and Fair Use | Skadden, Arps, Slate, Meagher & Flom LLP", "url": "https://www.skadden.com/insights/publications/2025/05/copyright-office-report"}, {"title": "U.S. Copyright Office Releases Third Report on AI and Copyright Addressing Training AI Models with Copyrighted Materials | Crowell & Moring LLP", "url": "https://www.crowell.com/en/insights/client-alerts/us-copyright-office-releases-third-report-on-ai-and-copyright-addressing-training-ai-models-with-copyrighted-materials"}, {"title": "US Copyright Office issues pre-publication version of 3rd Report on AI Training and Fair Use. AI training is transformative, but degree depends on how AI functions. Supports new market dilution theory of harm under Factor 4. ? Chat GPT Is Eating the World", "url": "https://chatgptiseatingtheworld.com/2025/05/10/us-copyright-issues-pre-publication-version-of-3rd-report-on-ai-training-and-fair-use-ai-training-is-transformative-but-degree-depends-on-how-ai-functions-supports-new-market-dilution-theory-of-ha/"}, {"title": "U.S Copyright Office Released? Copyright and Artificial Intelligence? Part 3 Generative AI Training? - AI|China Intellectual Property Lawyers Network", "url": "https://www.ciplawyer.com/articles/156708.html"}, {"title": "Taking a Closer Look: What the Copyright Office's 2025 AI Reports Mean for 2026", "url": "https://www.nealandleroy.com/post/taking-a-closer-look-what-the-copyright-office-s-2025-ai-reports-mean-for-2026"}]

Based on the search results, here are the key findings from the U.S. Copyright Office's 2025 report on AI training and fair use:

Fair Use Not Categorical

The report does not provide categorical answers but frames the debate around principled application of existing law. Instead, the extent of transformative quality depends on the AI model's specific function, how it is deployed, and critically, whether its outputs serve as market substitutes for the copyrighted works used in training.

Non-Expressive Outputs and Fair Use

Fair use is much more likely in instances where a model "entirely obscure[s] outputs from users or result[s] in non-expressive outputs." However, the report rejects the argument made by AI companies that AI training is "inherently transformative" because it is "not for expressive purposes," noting that language models absorb "not just the meaning and parts of speech of words".

Market Dilution Theory

The report identifies several potential harms in considering market effects, including lost sales, lost licensing opportunities, RAG-related substitution and market dilution. Even if a specific AI output does not infringe a specific work, the aggregate impact of AI-generated content can dilute the value of the broader market for human-authored works.

The U.S. Copyright Office released a "pre-publication version" on Friday, May 9, 2025, as part of an 108-page report titled "Copyright and Artificial Intelligence: Part III ? Generative AI Training".

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

16. assistant (2026-06-16T02:59:06.491Z)

I now have strong, authoritative counter-material. Let me confirm two more points: (1) that NBA v. Motorola actually undercuts the broad reading because it held the misappropriation/hot-news claim survives in narrow circumstances, and (2) the verbatim Authors Guild "non-expressive" language to test whether it really sweeps as broadly as the bottom line claims. Let me also pin down the Sega holding's necessity requirement.

17. user (2026-06-16T02:59:14.186Z)

NBA v. Motorola: Hot News Doctrine Analysis

Hot News Claim Status

The court did **not** entirely kill the hot news misappropriation tort. Instead, it preserved a narrow version by establishing specific conditions that must be met.

Five Elements for Surviving Hot News Claims

According to the Second Circuit, to survive a "hot news" claim similar to the INS precedent, all of these must be present:

1. The plaintiff generates the information at considerable cost
2. The information is time-sensitive in nature
3. The defendant free rides on the plaintiff's efforts
4. The defendant competes directly with a product or service offered by plaintiff
5. The defendant's actions enable others to free ride on plaintiff's efforts

Copyright Protection for Facts/Statistics

Yes, the holding confirmed that factual game statistics themselves are **uncopyrightable**. The court stated that defendants provided "purely factual information which any patron of an NBA game could acquire from the arena" and that copyright protects only the broadcast itself (the creative direction and production), not the underlying game facts or data.

The NBA's claim failed because Motorola transmitted facts, not the copyrighted broadcast content.

18. user (2026-06-16T02:59:16.361Z)

Fair Use Conditions for Intermediate Copying

The court established two key requirements for fair use protection:

****1. Necessity Requirement:****

The court stated that disassembly is permissible "if such disassembly provides the only means of access to those elements of the code that are not protected by copyright."

****2. Legitimate Reason Requirement:****

The court required that "the copier has a legitimate reason for seeking such access."

The court later reinforced this with more specific language: "Where there is good reason for studying or examining the unprotected aspects of a copyrighted computer program, disassembly for purposes of such study or examination constitutes a fair use."

Regarding the necessity standard specifically, the court emphasized: "when the person seeking the understanding has a legitimate reason for doing so and when no other means of access to the unprotected elements exists, such disassembly is as a matter of law a fair use of the copyrighted work."

The court rejected alternatives like chip peeling and clean room procedures, finding they did not eliminate the need for disassembly to access functional specifications. This reinforced that "disassembly is the only way to gain access to the ideas and functional elements embodied in a copyrighted computer program."

19. assistant (2026-06-16T02:59:20.591Z)

I now have comprehensive counter-authority. Let me do one final targeted check on whether the data extraction/fair-use line is jurisdictionally split and whether EU sui generis database rights or sports broadcast rights matter for a Bangalore-based commercial operation publishing data.

20. user (2026-06-16T02:59:30.684Z)

Web search results for query: "EU sui generis database right sports data extraction "substantial part" Football Dataco BHB v William Hill"

Links: [{"title": "English Court of Appeal's judgment in Football Dataco v. Sportradar has implications for claims against Pinterest, Tumblr and other social media sites, but European Court will have final say - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=77c69a03-7f1d-41c1-b42d-bd911ee1cfdb"}, {"title": "Football Dataco Ltd v Brittens Pools Ltd: database copyright in football fixture lists. - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=ae387b0f-8341-4622-a68c-c51e90ca7dce"}, {"title": "Copyright in Football Fixture Lists ? A Game of Two Halves | SLPC Blog", "url": "https://lawnk.wordpress.com/2012/01/05/copyright-in-football-fixture-lists-a-game-of-two-halves/"}, {"title": "Database rights back on the sport radar", "url": "https://www.simkins.com/news/database-rights-back-on-the-sport-radar"}, {"title": "62002CJ0203 - EN - EUR-Lex - European Union", "url": "https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex%3A62002CJ0203"}, {"title": "Football Dataco: implications for copyright subsistence | Practical Law", "url": "https://uk.practicallaw.thomsonreuters.com/7-518-6424?transitionType=Default&contextData=(sc.Default)"}, {"title": "Protecting athletes' data: an examination of database rights in the UK and EU | Littleton Chambers", "url": "https://littletonchambers.com/protecting-athletes-data-an-examination-of-database-rights-in-the-uk-and-eu/"}, {"title": "High Court finds infringement of database right in live football data | Practical Law", "url": "https://uk.practicallaw.thomsonreuters.com/5-519-3430?transitionType=Default&contextData=(sc.Default)&firstPage=true"}, {"title": "Rights in data ? Football Dataco case goes to UK Court of Appeal", "url": "https://www.mayerbrown.com/-/media/files/perspectives-events/publications/2013/03/rights-in-data--football-dataco-case-goes-to-uk-co/files/ipt_update_mar2013_football-dataco/fileattachment/ipt_update_mar2013_football-dataco.pdf"}]

Based on the search results, here's information about EU sui generis database rights, sports data extraction, and the key cases you mentioned:

Sui Generis Database Right Framework

The sui generis database right under Article 7 of the Database Directive is only afforded to databases in which there has been "qualitatively or quantitatively a substantial investment in either the obtaining, verification or presentation of the contents". Article 7 of the Directive provides the maker of a database with a sui generis right to prevent unauthorized extraction and/or re-utilization of all or a substantial part of the contents of a database.

The BHB v William Hill Decision

In Case C-203/02 BHB v. William Hill, the CJEU held that investment in the creation of content (in that case it was approved lists of runners and riders in horseracing), must be disregarded in this analysis. In the horse racing case (William Hill v BHB) the primary investment was in actually creating fixture lists, rather than obtaining or verifying them. Consequently, the Court of Appeals ruled in favour of William Hill denying BHB database right protection.

Substantiality Assessment

The concept of a substantial part, evaluated qualitatively, of the contents of a protected database referred to the scale of the investment in the obtaining, verification or presentation of the contents of the subject of the act of extraction or re-utilisation, regardless of whether that subject represented a quantitatively substantial part of the general contents of the protected database.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

21. assistant (2026-06-16T02:59:46.865Z)

I have enough to render a well-supported skeptical verdict. Let me synthesize.

The bottom line is largely correct on the narrow doctrinal core (facts/measurements aren't copyrightable; a coordinate table isn't a §101 derivative work). But it is materially over-confident in three respects that could get the client in trouble, so the correct verdict is **qualified**:

1. **The fair-use defense for the extraction step is now genuinely contested, not "strongly favorable."** The bottom line cites Authors Guild, Google v. Oracle, and 2025 AI rulings as if they settle the extraction question. But *Thomson Reuters v. Ross* (D. Del. 2025) squarely **rejected** the "I copied an expressive work only to reach unprotected facts/data" theory, distinguished Sega/Sony/Oracle as functional-code cases that don't transfer, and held the use non-transformative and market-harming where the output competes ? including a derivative "data to train AIs" market. A badminton-video product that competes with the rights-holder's own analytics/data-licensing market is exposed to exactly this reasoning.
2. **A lawful basis for the source video is load-bearing, and unlawful acquisition can independently sink the whole defense.** *Bartz v. Anthropic* (N.D. Cal. 2025): even "spectacularly transformative" end use did **not** cure infringement from pirated source copies ? and it led to a ~\$1.5B settlement. Sega's intermediate-copying fair use is conditioned on necessity ("the only means of access") plus a legitimate reason; that's a real limit, not a blanket pass. The bottom line's "ingest only clean-licensed/owned/permissioned videos" caveat is therefore not a footnote ? it is the dispositive fact.
3. **Copyright is not the only fence, and the bottom line ignores the others.** *NBA v. Motorola* preserved a narrow five-element hot-news misappropriation tort (costly time-sensitive info + direct competition + free-riding). *hiQ/Van Buren* expressly left contract, misappropriation, and trespass claims intact even where CFAA fails, and *ProCD v. Zeidenberg* holds anti-scraping/no-data-extraction ToS clauses are enforceable and not preempted ? so a video obtained under a "no data extraction" license can be breach-of-contract even if the numbers are uncopyrightable facts. For a Bangalore-based commercial operation, EU/UK **sui generis database right** (Database Directive Art. 7; though *BHB v. William Hill* narrows it for created-data) is a separate non-copyright exposure the US-only analysis never addresses.

Now the structured output.

22. user (2026-06-16T03:00:31.594Z)

Structured output provided successfully

23. assistant (2026-06-16T03:00:40.154Z)

I've completed the skeptical second-lawyer review and returned my verdict via StructuredOutput.

Verdict: **qualified**. The narrow core holds (extracted coordinates/timestamps are uncopyrightable facts under Feist/§102(b)/*NBA v. Motorola*, and a bare data table isn't a §101 derivative work), but the memo is over-confident in three ways that could get the client in trouble:

1. The extraction-step fair-use defense is now contested, not "strongly favorable" ? *Thomson Reuters v. Ross* (2025) rejected the "copy an expressive work just to reach facts" theory, distinguished the functional-code cases the memo relies on, and found Factor-4 harm in a derivative data-for-AI market; the Copyright Office's 2025 report rejects the "non-expressive = inherently transformative" framing.
2. The lawful-source caveat is dispositive ? *Bartz v. Anthropic* (2025) shows transformative end use does not cure unlawfully acquired source copies (~\$1.5B settlement), and Sega's safe harbor is conditioned on necessity.
3. Copyright isn't the only fence ? enforceable no-extraction ToS terms (*ProCD*), surviving hot-news misappropriation (*NBA v. Motorola*), CFAA-aside contract/tort claims (*hiQ*), and EU/UK sui generis database rights (relevant to a Bangalore-based commercial operation) are all unaddressed.

All citations were fetched and verified against authoritative sources (the Ross and Sega opinions via BitLaw, firm analyses, EUR-Lex, Justia).